IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA
FIFTH APPELLATE DISTRICT

DANNY VILLANUEVA, NIALL STALLARD, RUBEN BARRIOS, CHARLIE COX, MARK STROH, ANTHONY MENDOZA, AND CALIFORNIA RIFLE & PISTOL ASSOCIATION, INCORPORATED,

Plaintiffs and Appellants,

v.

XAVIER BECERRA, in his official capacity as Attorney for the State of California; LUIS LOPEZ, in his official capacity as Director of the California Department of Justice, Bureau of Firearms; CALIFORNIA DEPARTMENT OF JUSTICE; and DOES 1-10,

Defendants and Respondents.

Court of Appeal Case No. F078062

Fresno Superior Court
Case No. 17CECG03093

RESPONDENTS' MOTION FOR SUBSTITUTION OF PARTIES

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Respondents Xavier Becerra, et al.

Pursuant to rule 8.36, subdivision (a), of the California Rules of Court and Code of Civil Procedure section 368.5, Respondents respectfully move for an order substituting Luis Lopez, in his official capacity as the Director of the California Department of Justice, Bureau of Firearms, in place of Brent E. Orick as a Respondent in this appeal.

Respondents bring this motion on the grounds that Appellants' lawsuit seeks relief against the California Department of Justice, Bureau of Firearms, and that the current head of the Bureau of Firearms is Director Luis Lopez. Mr. Lopez succeeded Mr. Orick in that position effective February 15, 2020.

Therefore, Respondents respectfully request that the Court enter an order substituting Luis Lopez, in his official capacity as the Director of the California Department of Justice, Bureau of Firearms, as a Respondent in this matter in place of Brent E. Orrick.

MEMORANDUM OF POINTS AND AUTHORITIES IN SUPPORT OF MOTION TO SUBSTITUTE PARTIES

Where, as here, an action involves a public officer's official duties, the action does not abate when an incumbent's term expires but may be continued by his or her successor. (Weadon v. Shahen (1942) 50 Cal.App.2d 254, 260.) In such circumstances, the successor may be substituted on motion "as matter of course." (In re Estate of Lermond (1904) 142 Cal. 585, 586.) The rule liberally allowing substitution as a matter of course applies to state government officials. (See, e.g., Hotel Employees and Restaurant Employees Intern. Union v. Davis (1999) 21 Ca1.4th 585, 590 [substituting Governor Davis in mandamus proceeding

after Governor Wilson left office]; California Welfare Rights Organization v. Carleson (1971) 4 Cal.3d 445, 44 7, fn. 1 [substituting current Director of Department of Social Welfare]; Weadon, supra, 50 Cal.App.2d at p. 260 [Superintendent of Banks].)

When this case was commenced in September 2017, Stephen Lindley was the Chief of the California Department of Justice, Bureau of Firearms, and was sued in his official capacity. (Respondents' Appendix 3.) On September 5, 2019, this Court granted Respondents' previous Motion for Substitution of Parties, substituting Brent E. Orick, in his official capacity as Acting Director of the California Department of Justice, Bureau of Firearms, in place of Mr. Lindley. Effective February 15, 2020, Luis Lopez succeeded Mr. Orick as the head of the Bureau of Firearms. Consequently, Luis Lopez, in his official capacity as Director of the California Department of Justice, Bureau of Firearms, should be substituted as a Respondent in place of Mr. Orick.

Dated: October 7, 2020

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